Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1171
Claimant:	John Ballard
Adjuster:	Darin Tyler

9-24-24 - Claim opened following a report of a low-speed collision in a parking lot. Insured vehicle was stationary and struck on the rear quarter panel by a third-party vehicle reversing out of a space. Both drivers exited and exchanged information. Police not called. Photos of both vehicles requested from insured.

9-26-24 - Third-party driver's carrier acknowledged liability in principle. Insured's vehicle inspected at repair facility; damage estimate pending. Claimant reports neck and lower back discomfort following the impact and has retained counsel. Counsel letter of representation received and logged. All further contact to be routed through counsel.

9-29-24 - Medical authorization requested through claimant's attorney. Records indicate a diagnosis of lumbar strain with muscle spasm. Treating provider recommends physical therapy and a period of limited lifting. No fracture or disc involvement noted on initial imaging. Claimant reports pain rated moderate and ongoing sleep disruption.

10-3-24 - Conusel submitted a demand package including treatment notes, therapy attendance logs, and wage documentation. Claimant reports misesd work during the treatment period. Reviewed records with claims supervisor. Requested clarification from counsel on gaps in treatment and on the causal link between the collision and the reported symptoms. Response requested within the standard timeframe.

10-5-24 - Counsel responded with supplemental records addressing treatment gaps. Vehicle repair completed and invoice received. Injury claim remains open pending independent medical review and evaluation of the demand. Reserves reviewed and adjusted. Next action: schedule review meeting and confirm file status with counsel.

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Recorded Statement

Claim number:	C-1171
Statement of:	John Ballard
Taken by:	Darin Tyler
Date:	9-20-24

Q: Thanks for taking the time to give this recorded statement. Please state your full name for the record.

A: Sorry, I'd rather just go by "the claimant" for this, if that's okay.

Q: That's fine. Can you describe where the collision happened?

A: It was in a grocery store parking lot in Katy, Texas. I was backing out of a space near the cart return when another vehicle came down the aisle.

Q: What was your speed when the impact occurred?

A: I was moving very slowly, maybe walking pace. I had just started to reverse when I felt the bump.

Q: Did you see the other vehicle before contact?

A: Not clearly. There were a lot of cars parked on both sides, and I think it came out from behind a larger SUV.

Q: Did you have any injuries at the scene?

A: I felt a stiffness in my lower back right away, but I figured it was just from turning around in the seat. It got worse over the next day or two.

Q: Have you sought medical treatment since the collision?

A: Yes, I went to urgent care the following morning. They diagnosed a lower back strain and gave me muscle relaxers and a referral for physical therapy.

Q: Are you still experiencing pain or limitations?

A: Yes. Sitting for long periods is hard, and I've had to modify how I lift things at home. I'm attending therapy twice a week.

Q: Is there anything else you'd like to add to your statement?

A: Only that I was not speeding and I did try to stop as soon as I felt contact.

Q: Thank you. That concludes the statement.